

19STCV38890 19STCV38890

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 19STCV38890 Hearing Date: September 11, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

jason j. emer, md

, PROFESSIONAL CORPORATION, et al.;

Plaintiffs,

vs.

DEE RODRIGO

, et al.;

Defendants.

Case

No.:

19STCV38890

Hearing

Date:

September
11, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

PLAINTIFFS' motion TO STRIKE DEFENDANT EXOD
ARCH INC.'S (1) ANSWER TO PLAINTIFFS' FIRST AMENDED COMPLAINT, AND (2)
CROSS-COMPLAINT FILED aPRIL 10, 2023 AS TO PLAINTIFFS, AND TO ENTER EXOD ARCH
INC.'S DEFAULT

MOVING PARTY: Plaintiffs Jason J. Emer, MD,
Professional Corporation and Jason J. Emer, M.D.

RESPONDING PARTY: Unopposed

Motion to Strike Answer and Cross-Complaint

The court
considered the moving papers filed in connection with this motion.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs Jason J. Emer, MD, Professional
Corporation and Jason J. Emer, M.D. (collectively, "Plaintiffs") request the
court take judicial notice of the corporate filing records of the California
Secretary of State for defendant Exod Arch Inc. ("Defendant") showing that on
April 2, 2024, Defendant's status was changed from "Active" to "Forfeited –
FTB". The court grants Plaintiffs'
request and takes judicial notice pursuant to Evidence Code section 452
subdivision (c).

DISCUSSION

Plaintiffs move the court for an order striking (1) the Answer filed

by Defendant on April 10, 2023 in response to Plaintiffs' First Amended Complaint and (2) the third cause of action for "Breach of Written Contract – Office Remodel" and the seventh cause of action for "Quantum Meruit (Condo and Office Project)" in the Cross-Complaint filed on April 10, 2023. Plaintiffs also request that the court enter Defendant's default in connection with Plaintiffs' First Amended Complaint.

The court grants the motion to strike because Defendant forfeited its status as a corporation licensed to conduct business in California and has not regained active status, and thus cannot sue or defend against suit in a California court. (Segal Decl., ¶ 5; Ex. B.) (Code Civ. Proc., § 436, subd. (b); *Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603–1604 ["Suspension of corporate powers results in a lack of capacity to sue . . ."]; *Grell v. Laci Le Beau Corp.* (1999) 73 Cal.App.4th 1300, 1306 ["During the period that a corporation is suspended for failure to pay taxes, it may not prosecute or defend an action"].) Here, at the time Defendant filed its Answer and Cross-Complaint, Defendant did not lack capacity to sue or defend an action. It was not until later, on April 2, 2024, that Defendant's status changed to "Forfeited – FTB" at which time the action was stayed due to Defendant's bankruptcy proceedings. On April 14, 2026, the court lifted the stay for the limited purpose of allowing Plaintiffs to file the instant motion.

In addition, since July 2025, Defendant has not been represented by counsel in this action and, as a corporate entity, Defendant cannot represent itself in an action. (*Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101 ["As a general rule, it is well-established in California that a corporation cannot represent itself in a court of record either in propria persona or through an officer or agent who is not an attorney"].) The therefore court grants the motion to strike.

The court grants Plaintiffs' request to enter the default of defendant Exod Arch Inc. as to the First Amended Complaint.

ORDER

The court grants plaintiffs Jason J. Emer, MD, Professional Corporation and Jason J. Emer, M.D.'s motion to strike defendant

Exod Arch Inc.'s (1) answer to plaintiffs' first amended complaint and (2) the third cause of action for "Breach of Written Contract – Office Remodel" and the seventh cause of action for "Quantum Meruit (Condo and Office Project)" in the cross-complaint filed April 10, 2023 as to plaintiffs Jason J. Emer, MD, Professional Corporation and Jason J. Emer, M.D. without leave to amend.

The court orders that the default of defendant Exod Arch Inc. is entered as to the First Amended Complaint filed by plaintiffs Jason J. Emer, MD, Professional Corporation and Jason J. Emer, M.D. on February 28, 2023.

The court orders plaintiffs Jason J. Emer, MD, Professional Corporation and Jason J. Emer, M.D. to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 11, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court